

26STCV01963 26STCV01963

County: los-angeles

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-06-29

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C9%2C06%2F29%2F2026

Source SHA-256: e5effbdcc65b9d4ae329d03a8b929787fdd9780ef683b2522a63cfacca14a6e7

Case Number: 26STCV01963 Hearing Date: June 29, 2026 Dept: 9

The Court hereby

distributes a tentative Minute Order for the June 29, 2026 ISC. The parties are welcome to provide input and propose modifications to any aspect of the minute order at the Initial Status Conference. If all parties submit on the tentative minute order prior to the commencement of the June 29, 2026 ISC, the Court will adopt the tentative minute order, and the parties need not appear. However, if there is any matter that any party would like to discuss, including any proposed change to this tentative minute order, that party should not submit on this tentative but instead appear at the ISC to raise the issue.

To avoid a failure to appear, please make sure to check in with Department 9 court staff and wait for the case to be called unless you receive notification that all parties have submitted on the tentative minute order.

IRMA

JUAREZ vs BOSTON SCIENTIFIC NEUROMODULATION CORPORATION, 26STCV01963

[TENTATIVE] MINUTE
ORDER

On April 24, 2026,
the Court ordered the parties to file a joint status report by 06/22/2026.

The parties have
failed to comply.

PLAINTIFF'S INTIAL

STATUS CONFERENCE STATEMENT filed on June 15, 2026 indicates that the parties

are scheduled to mediate on July 14, 2026.

The operative

complaint currently does not include any claim for civil penalties pursuant to Labor Code section 2699 (PAGA penalties).

If Plaintiff wishes to amend the Complaint to add a claim for PAGA penalties and is prepared to do so, the Court hereby lifts the stay to grant Plaintiff leave to file an amended complaint adding a claim for PAGA penalties as long as Plaintiff files and serves such amended complaint by no later than August 10, 2026. To be clear, the Court is not ordering Plaintiff to amend the operative Complaint; if Plaintiff voluntarily wishes to amend the operative Complaint to add a claim for PAGA penalties, the Court is simply granting leave for Plaintiff to do so. By no later than August 10, 2026, Plaintiff must file and serve a status report as to whether Plaintiff intends to file either a separate action for PAGA penalties or an amended complaint in the instant action adding a claim for PAGA penalties, and if so, when Plaintiff intends to file the claim for PAGA penalties (either as a complaint in a separate action or by way of amendment to the complaint in this action).

The previously

imposed stay on discovery remains in effect.

However, the parties may of course voluntarily exchange discovery on an informal basis prior to any mediation.

The Initial Status

Conference is continued to August 24, 2026 at 8:30 am. The parties are to file a Joint Initial Status Conference Report by no later than August 17, 2026 in compliance with the Court's 2/13/26 Initial Status Conference order.

Plaintiff's

Counsel is ordered to give notice to all other parties and file proof of service of such.